



POLICE DEPARTMENT

July 18, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300792 (Incident Date: January 26, 2023) regarding Police Officer Huanxin Chen, Tax No. 957451 (DADS No. 2024-30198)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300792, pertaining to Police Officer Huanxin Chen. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Chen would be detrimental to the Police Department's disciplinary process.

In this matter, the complainant was lying down on the platform floor, next to the edge, when Officer Chen requested EMS for him. The complainant continuously cursed at and berated the officers and EMTs on scene, and refused to tell them what was bothering him. The officers handcuffed the complainant and removed him to the hospital for psychiatric evaluation. In the course of that interaction, Officer Chen spoke with a train conductor and stated that there were "a lot of crazies out here." Officer Chen also told the complainant to cooperate or else he would have to be treated "as a crazy person." The complainant demanded the shield numbers of the officers present and Officer Chen failed to provide his shield number to the complainant.

The Police Commissioner agrees with the CCRB that Officer Chen failed to provide his shield number to the complainant and that his use of the word "crazy" in this situation was discourteous. However, the Police Commissioner finds that the discourteous language used did not rise to the level of offensive language. The complainant did not allege he was offended nor did Officer Chen intend to offend. Officer Chen explained that English is his second language, has a limited vocabulary, and did not know another way to describe an emotionally disturbed person. He further explained that his statement to the conductor was not about the complainant but a general statement to remind him to be safe.

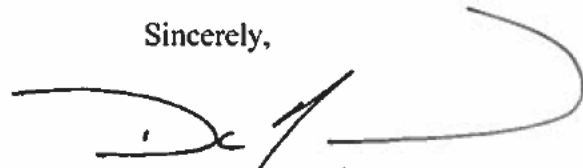
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Officer Chen has no formal disciplinary history and no prior substantiated CCRB cases. The Police Commissioner finds that the mitigated penalties for the allegations are appropriate in this case.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Officer Chen a Schedule "A" Command Discipline with forfeiture of two (2) vacation days for the allegations of discourtesy and failing to provide his shield number. Furthermore, the Police Commissioner intends to impose no disciplinary action for the allegations of offensive language.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 22, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202300792 (Incident Date: January 26, 2023) regarding Police Officer Huanxin Chen, Tax No. 957451 (DADS No. 2024-30198)

Commissioner Caban:

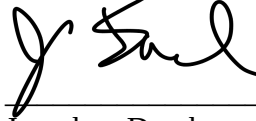
I am writing in response to the letter from Deputy Chief Anthony S. Marino, July 18, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Huanxin Chen would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded that you would instead direct the issuance of the following: a Schedule “A” Command Discipline with the forfeiture of two (2) vacation days for PO Chen’s discourtesy and failure to provide his shield number. Deputy Chief Marino also stated that you would impose no discipline for the allegations of offense language.

In this case, BWC captured PO Chen stating to a train conductor that there “are a lot of crazies out here.” He made this statement while standing next to the complainant, § 87(2)(b) PO Chen subsequently told § 87(2)(b) that he may have to treat him as a “crazy person.” Finally, BWC also captured § 87(2)(b) very clearly requesting the officers’ shield numbers, which PO Chen failed to provide. Each one of the charges that have been substantiated are fully supported by the evidence and should result in the issuance of Charges and Specifications against PO Chen.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, it is respectfully requested that you permit the CCRB to continue the disciplinary process against PO Chen.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 23, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

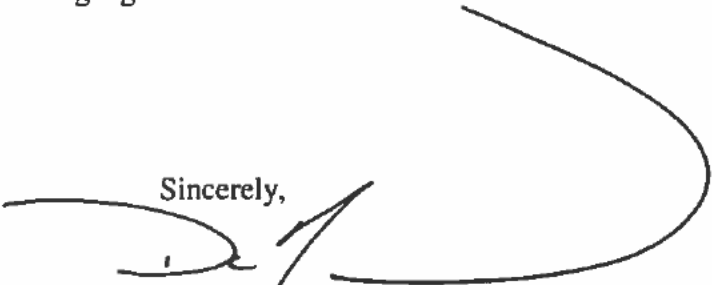
Re: CCRB Case No. 202300792 (Incident Date: January 26, 2023) regarding Police Officer Huanxin Chen, Tax No. 957451 (DADS No. 2024-30198)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 22, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Huanxin Chen, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Chen for the reasons expressed in my July 18, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Chen be issued a Schedule "A" Command Discipline with forfeiture of two (2) vacation days for the allegations of discourtesy and failing to provide his shield number. Furthermore, the Police Commissioner directs to impose no disciplinary action for the allegations of offensive language.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office